

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-3422 & 2017-4597

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF CELESTINA GARRISON,
LICENSE NO. LPC 5316,**

Respondent.

**IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners ("Board") and Celestina Garrison ("Respondent") as
follows:**

- 1. The Board has jurisdiction over the person of Respondent and the
subject matter of this Stipulation and Final Agency Order ("Order").**
- 2. Respondent was licensed to practice as a Professional Counselor ("LPC")
in the State of Colorado on June 11, 2009, and her license is now active with
conditions.**
- 3. This Order is a full and final resolution of Case Nos. 2018-3422 and 2017-
4597. This Order does not resolve any other cases, complaints, or matters, known or
unknown to the Board or Respondent, as of the effective date of this Order.**
- 4. Respondent admits the following:**
 - a. On January 11, 2018, Respondent entered into a Stipulation and
Final Agency Order with the Board in Case No. 2017-4597 ("January 2018
Order"), due to Respondent failing to report multiple DUI convictions to
the Board. Respondent agreed to three (3) years of probation and
participation in Peer Assistance Services, Inc. ("PAS").**
 - b. On January 23, 2018, Respondent signed a rehabilitation contract
with PAS ("PAS Contract").**

b. On or around February, March, and April 2018, the Board received information from PAS that Respondent failed to comply with her PAS Contract. Respondent thereby failed to comply with the January 2018 Order. Respondent signed a Cease Practice Agreement with PAS on February 27, 2018.

c. Respondent was non-compliant with the January 2018 Order by:

i) Submitting urine drug test samples positive for alcohol on February 19 and March 26, 2018;

ii) Submitting dilute urine drug test samples on January 25, February 13 and 26, March 26, and April 16 and 27, 2018; and

iii) Missing scheduled urine drug screen tests on February 24 and April 14, 2018.

d. Respondent violated a Board Order.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(b) and (e), C.R.S., which state:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5), C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5, Respondent is subject to the following disciplinary sanctions that the Board believes are necessary to protect the public health, safety, and welfare.

RELINQUISHMENT

7. Respondent hereby relinquishes her LPC license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of §12-43-224(3)(a)(II), C.R.S.

8. Following relinquishment of her license, Respondent shall not perform any act requiring a license to practice.

9. Respondent understands that if she applies for licensure at any future time, Respondent will be required to comply with all criteria for initial licensure that exist at the time of application.

10. Respondent also agrees not to register as a psychotherapist in the State of Colorado or perform any act constituting psychotherapy as defined under §12-43-201(9), C.R.S.

TERMS AND CONDITIONS

11. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

12. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

13. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representatives.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

15. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. Respondent shall obey all state and federal laws while this Order is in effect.

17. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT



CELESTINA GARRISON
LPC 5316

AGREED TO AND ORDERED BY:

**STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS**



DARCIE MAGNUSON
Program Director

Effective this 1st day of

June, 2018.